

Customary Election Regulations, 2026

Amended and Restated Election Regulations of the Fort McMurray No. 468 First Nation

Draft for Council approval and ratification by the Electors | September 30, 2026

Status	Draft for approval by Council Resolution under section 20.2, and ratification by the Electors under sections 20.3 to 20.8, of the Customary Election Regulations effective May 31, 2014.
Replaces	Customary Election Regulations of the Fort McMurray No. 468 First Nation, effective May 31, 2014 (the "2014 Regulations").
Comes into force	On the date of the Special Meeting of Electors at which it is approved (2014 Regulations, section 20.6), subject to the transitional rules in Part 11.
Notes	Explanatory Notes at the end of this document are not part of the Regulations. They explain what changed from 2014 and why.
Legal review	To be reviewed by legal counsel before adoption.

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CUSTOMARY ELECTION REGULATIONS OF THE FORT McMURRAY No. 468 FIRST NATION, 2026

PREAMBLE

WHEREAS the Fort McMurray No. 468 First Nation has the inherent Aboriginal right and Treaty right as a First Nation to govern relations among its Band Members and between the Fort McMurray No. 468 First Nation and other governments; and

WHEREAS the Aboriginal right of the Fort McMurray No. 468 First Nation to self-government was recognized and affirmed in Treaty No. 8 entered into between Her Majesty The Queen and the Fort McMurray No. 468 First Nation and confirmed by section 35 of the *Constitution Act, 1982*; and

WHEREAS the customs and traditions of the Fort McMurray No. 468 First Nation require democratic, fair, and open elections for the Council, which is the governing authority of the First Nation; and

WHEREAS the Customary Election Regulations of the Fort McMurray No. 468 First Nation, effective May 31, 2014, were approved by the Electors and set out in section 20 the manner in which they may be amended; and

WHEREAS the Electors wish to amend and restate the 2014 Regulations; and

WHEREAS the Council approved these amendments by Resolution No. _____ dated _____, pursuant to section 20.2 of the 2014 Regulations; and

WHEREAS notice of a Special Meeting of the Electors was given in accordance with sections 20.3 to 20.5 of the 2014 Regulations, and on the _____ day of _____, 20____, a majority of a quorum of Electors present and voting by secret ballot at a duly constituted Special Meeting of the Electors approved these amendments; and

WHEREAS the adoption of these Regulations is an exercise of the Aboriginal and Treaty right of the Fort McMurray No. 468 First Nation to self-government, and nothing in these Regulations shall be construed so as to abrogate or derogate from any Aboriginal or Treaty rights of the Fort McMurray No. 468 First Nation;

NOW THEREFORE the Customary Election Regulations of the Fort McMurray No. 468 First Nation are amended and restated as follows:

Part 1 Interpretation

1 Citation

- 1.1 These Regulations may be cited as the *Customary Election Regulations of the Fort McMurray No. 468 First Nation, 2026*.
- 1.2 These Regulations amend and restate the 2014 Regulations in their entirety.

2 Definitions

- 2.1 In these Regulations:
 - (a) "2014 Regulations" means the Customary Election Regulations of the Fort McMurray No. 468 First Nation effective May 31, 2014;
 - (b) "Annual General Assembly" means the annual meeting of Band Members required by the Council Procedure By-law;

- (c) "Appellant" means an Elector who submits a Notice of Appeal under section 17;
- (d) "Band Member" means a person whose name appears on the Membership List;
- (e) "By-election" means an Election held to fill a Seat that has become vacant during a term;
- (f) "Candidate" means an Elector who has been confirmed by the Electoral Officer as properly nominated for a Seat;
- (g) "Caretaker Period" means a period described in section 23.1;
- (h) "Chief" means the member of Council elected to the office of Chief;
- (i) "Confidential Information" means:
 - (i) information which could prejudice the First Nation's negotiating or financial position if it became publicly available;
 - (ii) information which was provided by a Band Member in confidence;
 - (iii) information about a Band Member in respect of which that Band Member had a reasonable expectation of privacy; and
 - (iv) information which is sought by one Band Member about another Band Member, except where the relationship between the two Band Members is that of parent or guardian and minor child, or represented adult and trustee;
- (j) "Corrupt Election Practice" means any of the following acts, whether done by a Candidate, a member of Council, an employee or official of the First Nation or of a First Nation Business Entity, or any other person:
 - (i) giving, offering, or promising money, employment, a contract, housing, a loan, forgiveness of a debt, a program benefit, or any other valuable consideration in exchange for a vote, for refraining from voting, or for withdrawing as a Candidate;
 - (ii) threatening adverse consequences, including loss of employment, housing, a contract, or a program benefit, or coercing or intimidating an Elector, a Candidate, or an Election official, for the purpose of influencing a vote or the conduct or result of an Election;
 - (iii) forging a document, or providing false or misleading information, for the purpose of influencing a vote, a ballot account, a vote result, or a declaration of an Election result;
 - (iv) falsifying a ballot account, a vote result, a List of Electors, or a declaration of an Election result;
 - (v) using funds, employees, employee time, vehicles, equipment, facilities, or communications of the First Nation or of a First Nation Business Entity to support or oppose a Candidate; or
 - (vi) disclosing Confidential Information obtained through employment or office with the First Nation or a First Nation Business Entity for the purpose of influencing an Elector to vote or not to vote for any Candidate;
- (k) "Council" means those persons elected pursuant to these Regulations who hold the office of Chief or Councillor and who are empowered to act as the governing body of the First Nation;
- (l) "Council Governance Laws" means the Council Procedure By-law and the Conduct and Conflict of Interest Code of the First Nation, as amended from time to time in accordance with their terms and these Regulations;
- (m) "Councillor" means a member of Council elected to a Portfolio Seat;
- (n) "Debt" has the meaning given in section 12.4;
- (o) "Election" means a General Election, By-election, Transitional Election, or Run-off Election held pursuant to these Regulations;

- (p) "Election Appeal Tribunal" or "Tribunal" means the body constituted under section 9;
- (q) "Election Day" means the day on which voting at Polling Stations concludes in an Election or other vote held under these Regulations;
- (r) "Elector" means a person whose name is entered on the Membership List and who is at least eighteen (18) years of age on or before Election Day or, for any other vote under these Regulations, on or before the day of that vote;
- (s) "Electoral Officer" means the person appointed under section 8;
- (t) "Finance Officer" means the senior financial employee of the First Nation, or if there is none, the band administrator;
- (u) "First Nation" means the Fort McMurray No. 468 First Nation and its successors;
- (v) "First Nation Business Entity" means any corporation, limited partnership, trust, or other entity owned or controlled in whole or in part, directly or indirectly, by the First Nation;
- (w) "General Election" means an Election held on the date fixed by section 5 for all Seats in a Seat Group;
- (x) "Immediate Family" means the Spouse, child, stepchild, parent, step-parent, guardian, sibling, grandchild, or grandparent of a person, the Spouse of any of them, and any other person who lives with that person as a member of that person's family, and "child" includes a legally adopted child and a child adopted in accordance with Indigenous custom;
- (y) "Integrity Commissioner" means the person appointed under the Conduct and Conflict of Interest Code and section 24;
- (z) "List of Electors" means the list of all Electors prepared by the membership department or band administrator and provided to the Electoral Officer under section 10;
- (aa) "Membership List" means the Band Membership List of the First Nation maintained in accordance with the Membership Code of the First Nation;
- (bb) "Non-resident Elector" means an Elector who is not Ordinarily Resident on a Reserve;
- (cc) "Ordinarily Resident" means, in respect of a place, that the place is where a person normally lives, as shown by where the person normally eats and sleeps, where the person receives mail, and where the person's Immediate Family resides. A person can be Ordinarily Resident in only one place at a time, and remains Ordinarily Resident in a place until another place of ordinary residence is acquired. A person who is temporarily absent for education, medical care, temporary employment, or employment requiring residence at a job site or work camp remains Ordinarily Resident in the place from which they are absent;
- (dd) "Polling Clerk" means a person appointed by the Electoral Officer to assist in the conduct of an Election or other vote;
- (ee) "Polling Station" means a building, hall, or room selected by the Electoral Officer as a site for voting;
- (ff) "Portfolio" means an area of responsibility set out in section 4.2 and Schedule D;
- (gg) "Portfolio Seat" means a Seat on Council held by a Councillor who is responsible for a Portfolio;
- (hh) "Quorum of Council" means five (5) members of Council, being a majority of the eight (8) Seats, subject to section 23.4;
- (ii) "Ratification Vote" means a vote of Electors under section 25;
- (jj) "Removal Vote" means a vote of Electors under section 21;

- (kk) "Reserve" means a reserve of the First Nation and includes Clearwater 175, Gregoire Lake 176, Gregoire Lake 176A, Gregoire Lake 176B, and any further additions to reserves of the First Nation;
- (ll) "Resolution" means a motion approved at a duly convened meeting of Council at which a Quorum of Council was present, and recorded in a written Band Council Resolution;
- (mm) "Run-off Election" means an Election held in accordance with section 16;
- (nn) "Scrutineer" means an agent of a Candidate appointed pursuant to section 15.10;
- (oo) "Seat" means the office of Chief or a Portfolio Seat;
- (pp) "Seat Group" means Seat Group A or Seat Group B established under section 4.4;
- (qq) "Special Meeting of Electors" means a meeting of Electors called for the purpose of receiving information or voting on one or more questions under these Regulations;
- (rr) "Spouse" means a person to whom another person is legally married, or with whom that person has lived in a conjugal relationship for a continuous period of at least one (1) year; and
- (ss) "Transitional Election" means an Election held under section 28.

3 Interpretation and Time

- 3.1 Where these Regulations conflict with any Resolution, by-law, policy, or procedure of the First Nation, these Regulations prevail.
- 3.2 Where a provision of these Regulations is ambiguous, it shall be interpreted in the manner that best protects the right of Electors to vote, to stand for office, and to hold the Council to account.
- 3.3 In these Regulations, "days" means calendar days. Where the last day of a period falls on a Saturday, Sunday, or statutory holiday, the period ends on the next day that is not a Saturday, Sunday, or statutory holiday. "Business days" excludes Saturdays, Sundays, and statutory holidays.
- 3.4 The following Schedules form part of these Regulations: Schedule A, Duties of the Electoral Officer; Schedule B, Prescribed Forms; Schedule C, Oath of Office; and Schedule D, Portfolio Mandates.

Part 2

Council

4 Composition, Portfolios, and Term of Office

- 4.1 The First Nation shall be governed by a Council consisting of one (1) Chief and seven (7) Councillors. Each Councillor is elected to one Portfolio Seat.
- 4.2 The Portfolio Seats are:
- (a) Finance and Audit;
 - (b) Economic Development, Lands and Resources;
 - (c) Housing and Infrastructure;
 - (d) Public Works and Emergency Services;
 - (e) Education, Training and Employment;
 - (f) Health, Wellness and Social Development; and
 - (g) Off-Reserve Members.
- 4.3 A Portfolio gives a Councillor responsibility to oversee, inquire, and report to Council and to Band Members on the matters in that Portfolio. A Portfolio does not give any Councillor or the Chief authority to make decisions on behalf of the First Nation, to direct or supervise employees, to approve spending, or to bind the First Nation. All decisions of Council shall be made by Resolution.
- 4.4 The Seats are divided into two Seat Groups:
- (a) Seat Group A: Chief; Finance and Audit; Housing and Infrastructure; and Education, Training and Employment; and
 - (b) Seat Group B: Economic Development, Lands and Resources; Public Works and Emergency Services; Health, Wellness and Social Development; and Off-Reserve Members.
- 4.5 A person elected at a General Election holds office for a term ending immediately before the declaration of the results of the next General Election for that person's Seat Group, which is held four (4) years later under section 5.
- 4.6 A person elected at a By-election, Transitional Election, or Run-off Election holds office for the remainder of the term of the Seat to which they were elected.
- 4.7 Every Elector may vote for a Candidate for every Seat, whether the Elector lives on or off a Reserve.

5 Dates of General Elections

- 5.1 General Elections shall be held on the second Saturday of June in the following years:
- (a) for Seat Group B, in 2028 and every fourth year after that; and
 - (b) for Seat Group A, in 2030 and every fourth year after that.
- 5.2 The dates fixed by section 5.1 do not require a Resolution. Council has no authority to postpone, cancel, or change the date of a General Election, a By-election, a Transitional Election, a Ratification Vote, or a Removal Vote.
- 5.3 Where a declared state of emergency, a local emergency, or a public health order affecting a Reserve makes it unsafe to vote on Election Day, the Electoral Officer, and not Council, may postpone voting once, for no more than sixty (60) days, by written notice with reasons posted in the manner required by section 15.1. Any further postponement requires the approval of the Tribunal, and no Election may be postponed more than one hundred and twenty (120) days in total. During any postponement the Electoral Officer shall offer mail-in voting to every Elector.
- 5.4 If a General Election is not held on the date fixed by section 5.1 for any reason, the Electoral Officer shall hold it as soon as possible, and in any event within ninety (90) days after that date. The terms of the persons holding Seats in that Seat Group end immediately before the declaration of the results of that General Election, and section 23 applies from the fixed date until that declaration.

6 Assumption of Office and Oath

- 6.1 A person declared elected shall take the Oath of Office in Schedule C before the Electoral Officer, a Commissioner for Oaths, or a Justice of the Peace, at a meeting open to Band Members, within fourteen (14) days after the declaration of results or, where an appeal is filed, within fourteen (14) days after the appeal is determined.
- 6.2 A person declared elected holds office from the time the person takes the Oath of Office. No person may exercise any power of the office before taking the Oath of Office.
- 6.3 If a person declared elected fails to take the Oath of Office within thirty (30) days after the declaration of results, or after the determination of any appeal, without a reason accepted in writing by the Electoral Officer, the Seat becomes vacant and section 22 applies.
- 6.4 In the event of an appeal of an Election result, a person declared elected who has taken the Oath of Office is entitled to remain in office until the appeal has been determined and, after that, subject to the appeal decision.
- 6.5 Within seven (7) days after a person ceases to hold office, the person shall deliver to the Band Manager every record, key, device, password, access credential, payment card, and other property of the First Nation in their possession or control. The Band Manager shall give a written receipt and shall report any failure to deliver to Council and the Electoral Officer.

7 One Office and Term Limits

- 7.1 A person may hold only one Seat at a time.
- 7.2 No person other than a person elected under these Regulations shall hold the office of Chief or Councillor, sit or vote as a member of Council, or be given any title that includes the word "Chief" or "Councillor" or that represents the person as a member of Council.
- 7.3 A person who has held the office of Chief for two (2) consecutive full terms is not eligible to be a Candidate for Chief at the next General Election for Seat Group A.
- 7.4 A person who has held one or more Portfolio Seats for three (3) consecutive full terms is not eligible to be a Candidate for any Portfolio Seat at the next General Election for that person's Seat Group.
- 7.5 Only terms beginning after these Regulations come into force are counted for the purposes of sections 7.3 and 7.4.

Part 3

Electoral Officer and Election Appeal Tribunal

8 Electoral Officer

- 8.1 There shall be a standing Electoral Officer, appointed for a term of four (4) years, who is responsible for the conduct of every Election, Ratification Vote, and Removal Vote under these Regulations.
- 8.2 At least one hundred and eighty (180) days before the end of an Electoral Officer's term, or within twenty-one (21) days after the office becomes vacant, Council shall post a public call for applications and shall appoint the Electoral Officer by Resolution from among the qualified applicants. The appointment takes effect on the date of the Resolution and continues unless a majority of the Electors voting at the next Annual General Assembly or Special Meeting of Electors vote not to confirm it.
- 8.3 The Electoral Officer shall be qualified by electoral training or prior experience conducting elections, and shall not be:
- (a) a Candidate, or Immediate Family of a Candidate or of a member of Council;
 - (b) an Elector or a Band Member;
 - (c) an employee, contractor, or legal counsel of the First Nation or of a First Nation Business Entity, or a person who held any such position in the three (3) years before appointment, other than as an electoral officer; or
 - (d) an employee of Indigenous Services Canada, Crown-Indigenous Relations and Northern Affairs Canada, or any successor department.
- 8.4 If no Electoral Officer is in office on the one hundred and fiftieth (150th) day before a General Election date, or thirty (30) days after a vacancy arises in the office, the Tribunal shall appoint a qualified Electoral Officer. If the Tribunal is not constituted, any Elector may apply to the Federal Court for directions, and the First Nation shall pay the reasonable costs of that application.
- 8.5 The Electoral Officer is not an employee of the First Nation and is not subject to direction by Council, by any member of Council, or by any employee in carrying out the duties under these Regulations. Council shall not reduce the remuneration of the Electoral Officer during a term and shall not remove the Electoral Officer.
- 8.6 The Tribunal may remove the Electoral Officer for incapacity, conflict of interest, misconduct, or failure to perform the duties of the office, after written notice to the Electoral Officer and an opportunity to be heard.
- 8.7 The duties of the Electoral Officer are set out in Schedule A. The Electoral Officer may issue written procedures consistent with these Regulations, which shall be posted at least thirty (30) days before an Election Day. Council may not add to, remove, or vary the duties of the Electoral Officer.
- 8.8 The remuneration of the Electoral Officer shall be fixed in the appointment Resolution and reported in the annual audited financial statements of the First Nation.
- 8.9 At least one hundred and twenty (120) days before each Election Day, or as soon as possible for a By-election, Transitional Election, Ratification Vote, or Removal Vote, the Electoral Officer shall deliver a written budget to the Finance Officer. The First Nation shall pay the reasonable costs of each Election and vote under these Regulations as a first charge on its general revenues, and the Finance Officer shall pay invoices of the Electoral Officer within fifteen (15) days of receipt.

- 8.10 The Electoral Officer may appoint deputy electoral officers and Polling Clerks, none of whom may be a Candidate, Immediate Family of a Candidate, or a member of Council.

9 Election Appeal Tribunal

- 9.1 There shall be a standing roster of six (6) persons appointed for terms of four (4) years to serve on the Election Appeal Tribunal, consisting of:
- (a) two (2) retired judges or lawyers who have not been retained by the First Nation, any First Nation Business Entity, any member of Council, or any Band Member in the five (5) years before appointment, other than as a member of an election appeal tribunal, and who are not Band Members or Immediate Family of any Band Member;
 - (b) two (2) persons who are elected Chiefs or Councillors of another First Nation and are not Band Members; and
 - (c) two (2) persons at least eighteen (18) years of age who are not Band Members and who have no vested interest in the outcome of any matter likely to come before the Tribunal.
- 9.2 Council shall appoint the roster by Resolution, and each appointment continues unless a majority of the Electors voting at the next Annual General Assembly or Special Meeting of Electors vote not to confirm it. If a roster position remains vacant for sixty (60) days, the remaining roster members shall fill it from qualified persons. The Electoral Officer does not appoint members of the Tribunal.
- 9.3 For each matter, the roster members shall select a panel of three (3) persons, one from each category in section 9.1, and the member from section 9.1(a) shall chair the panel.
- 9.4 A roster member who is Immediate Family of an Appellant, a Candidate, or a person whose conduct is in issue, or who may reasonably appear to have a bias or conflict in connection with the matter, shall excuse themselves, and the remaining roster members shall select a replacement from the same category.
- 9.5 The Tribunal hears election appeals under Part 6, appeals on the List of Electors, Debt disputes, and eligibility under sections 10.6, 12.7, and 12.15, removal matters under Part 7, the removal of the Electoral Officer under section 8.6, postponements under section 5.3, and any other matter these Regulations assign to it.
- 9.6 The fees and disbursements of the Tribunal, and the associated hearing costs, shall be paid by the First Nation.

Part 4

Electors and Nominations

10 List of Electors

- 10.1 The membership department or band administrator of the First Nation shall maintain an updated List of Electors.
- 10.2 The List of Electors provided to the Electoral Officer shall be in alphabetical order and may contain only the name, mailing address, telephone number and email address where available, registry or treaty number, and date of birth of each Elector.
- 10.3 The List of Electors available to Candidates and Electors shall be in alphabetical order and may contain only the surname, given name, and middle initial of each Elector, and whether the Elector lives on or off a Reserve.
- 10.4 Each Non-resident Elector is responsible for keeping their name and address current with the membership department or band administrator, who shall record that information in the List of Electors.
- 10.5 The membership department shall provide the List of Electors to the Electoral Officer at least sixty (60) days before each Election Day, and the Electoral Officer shall update it as required.
- 10.6 The Electoral Officer shall post the list described in section 10.3 at least forty-five (45) days before Election Day. Any Elector may object in writing to the inclusion or omission of a name up to fourteen (14) days before Election Day. The Electoral Officer shall decide each objection within three (3) business days, and the decision may be appealed to the Tribunal within two (2) business days.
- 10.7 The List of Electors may only be used by Candidates for campaigning, by Electors to verify that they are on the list, and by the Electoral Officer and Election officials to carry out their duties.
- 10.8 A person is eligible to vote if they are an Elector on Election Day. An Elector whose name does not appear on the List of Electors may vote after making a declaration of eligibility in writing before the Electoral Officer or a Polling Clerk and producing adequate evidence of Band membership and proper identification, or by mailing a statutory declaration affirming eligibility sworn before a Commissioner for Oaths.
- 10.9 If a person refuses to make the declaration and their name is not on the List of Electors, the person may not vote.
- 10.10 When the identity of a voter is questioned, the Electoral Officer or a Polling Clerk may request photo identification before allowing that person to vote.

11 Mail-in Voting Requests

- 11.1 Any Elector may request a mail-in ballot at any time up to twenty-one (21) days before Election Day, in writing, by email, or by telephone to the Electoral Officer or the membership department.
- 11.2 An Elector may register as a permanent mail-in voter, and the Electoral Officer shall send that Elector a mail-in ballot for every Election and vote until the Elector withdraws the request in writing.
- 11.3 With every Notice of Nomination, the Electoral Officer shall send a mail-in ballot request form to every Non-resident Elector whose address is known.

12 Nominations

- 12.1 At least sixty (60) days before Election Day, the Electoral Officer shall post a Notice of Nomination at the band office of the First Nation, at other locations the Electoral Officer designates, on the website of the First Nation, and on any social media page of the First Nation, and shall mail or email the notice to every Non-resident Elector whose address is known.
- 12.2 The Notice of Nomination shall set out:
- (a) the time, place, and date of the nomination meeting and its duration, and how nominations may be delivered in person or electronically;
 - (b) the Seats for which nominations are to be held;
 - (c) how to request a mail-in ballot under section 11;
 - (d) the qualifications for Candidates under section 12.3;
 - (e) the documents required under section 12.10; and
 - (f) that the List of Electors, these Regulations, and the Council Governance Laws are available from the Electoral Officer and on the website of the First Nation.
- 12.3 To qualify for nomination, a person shall:
- (a) be an Elector;
 - (b) not have been convicted of an indictable offence within six (6) years before the date of nomination, unless a record suspension or pardon has been granted for that offence;
 - (c) not be serving a sentence of imprisonment, including an intermittent or conditional sentence, on the date of nomination;
 - (d) not owe a Debt to the First Nation or a First Nation Business Entity as of the close of nominations;
 - (e) not have been found liable in civil proceedings, or convicted in criminal proceedings, in respect of any matter involving theft, fraud, or misuse of property belonging to the First Nation or a First Nation Business Entity;
 - (f) not have been found by the Tribunal or a court, within five (5) years before the date of nomination, to have engaged in a Corrupt Election Practice;
 - (g) not be ineligible under section 7.3, 7.4, or 12.8;
 - (h) for the Off-Reserve Members Seat, be Ordinarily Resident off the Reserves on the date of nomination; and
 - (i) submit all documents required under section 12.10 by the close of nominations.
- 12.4 In section 12.3(d) and this section, "Debt" means an amount of money that:
- (a) is owed to the First Nation or a First Nation Business Entity by the nominee, or by a corporation of which the nominee owns, directly or indirectly, fifty percent (50%) or more of the shares;
 - (b) arises from a loan, a salary or travel advance, or another obligation that is set out in a written agreement signed by the debtor, in a judgment or order of a court or tribunal, or in an invoice or demand that was authorized by a Resolution made before the invoice or demand was issued; and
 - (c) has been due and unpaid for more than ninety (90) days, and is not the subject of a written repayment arrangement that is in good standing.

- 12.5 An amount that is disputed in good faith in a proceeding commenced before the Notice of Nomination was posted is not a Debt until that proceeding is finally decided.
- 12.6 Any Elector may request from the Finance Officer, at any time, a Debt Clearance Certificate in the form prescribed in Schedule B stating whether the Elector owes any Debt and, if so, the amount and its basis. The Finance Officer shall issue the certificate within seven (7) days of the request and shall not delay or refuse it on the direction of any member of Council or any other person. If the certificate is not issued within seven (7) days, the nominee may instead file a statutory declaration stating that they requested the certificate and that, to the best of their knowledge, they owe no Debt.
- 12.7 A nominee who disputes a Debt claimed against them may refer the dispute to the Electoral Officer before the close of nominations. The Electoral Officer shall decide the dispute within three (3) business days after hearing from the nominee and the Finance Officer. Either may appeal to the Tribunal within two (2) business days, and the Tribunal shall decide within seven (7) days. If the dispute has not been finally decided before ballots are printed, the nominee's name shall appear on the ballot.
- 12.8 A person who resigned from office under section 19 is not eligible to be a Candidate in the By-election held to fill the vacancy caused by that resignation. A person removed from office under Part 7 is not eligible to be a Candidate in the By-election held to fill the resulting vacancy, or for any Seat at the next General Election for either Seat Group.
- 12.9 A person may be nominated for only one Seat in an Election. A member of Council whose term is not ending at an Election must resign from office before being nominated for a different Seat in that Election, except as provided in section 28.
- 12.10 A nomination shall be made on the nomination form prescribed in Schedule B and shall be accompanied by:
- (a) the signatures of at least ten (10) Electors, not including the nominee;
 - (b) the signature of the nominee accepting the nomination, witnessed by a Commissioner for Oaths, the Electoral Officer, or a Polling Clerk;
 - (c) a performance bond under section 12.12;
 - (d) a Debt Clearance Certificate, or the statutory declaration described in section 12.6;
 - (e) a Canadian Police Information Centre report, or a letter from a police service, stating that the nominee has no conviction for an indictable offence within the six (6) years before the date of nomination;
 - (f) a statutory declaration that the nominee has not been found liable or convicted as described in section 12.3(e);
 - (g) a Financial Disclosure Statement in the form prescribed in Schedule B; and
 - (h) a signed acknowledgement that the nominee has read the Council Governance Laws and will comply with them if elected.
- 12.11 A nominee may also file a written statement of no more than five hundred (500) words, which the Electoral Officer shall publish with the list of Candidates and send to Electors under section 13.2.
- 12.12 Each person nominated for Chief shall submit a performance bond of one hundred dollars (\$100.00), and each person nominated for a Portfolio Seat shall submit a performance bond of fifty dollars (\$50.00), by cash, money order, certified cheque, or electronic transfer payable to the First Nation. The performance bond is paid to the general account of the First Nation and is not refundable, except that a nominee ruled ineligible shall have the bond returned.

- 12.13 The nomination meeting shall be held at least thirty-five (35) days before Election Day. The Electoral Officer shall receive nominations from the date of the Notice of Nomination until 5:00 p.m. on the day of the nomination meeting. Nominations may be delivered in person or electronically, and original signed documents delivered electronically shall be filed within three (3) business days after the close of nominations.
- 12.14 The Electoral Officer shall determine whether each nomination is complete and shall promptly advise the nominee in writing of any deficiency. A nominee advised of a deficiency in the last forty-eight (48) hours before the close of nominations may cure it within two (2) business days after the close, except that the Elector signatures required by section 12.10(a) must be filed before the close.
- 12.15 The Electoral Officer shall notify each nominee in writing, with reasons, whether they are eligible to be a Candidate. A nominee ruled ineligible may appeal to the Tribunal within three (3) business days, and the Tribunal shall decide within seven (7) days.
- 12.16 Within twenty-four (24) hours after the close of nominations, the Electoral Officer shall post the names of the Candidates and the Seat for which each is nominated at public places on the Reserves, on the website of the First Nation, and at other locations the Electoral Officer designates.
- 12.17 A Candidate may withdraw by written notice to the Electoral Officer, signed by the Candidate and witnessed by an Elector, no later than twenty-four (24) hours after the close of nominations.
- 12.18 If a Candidate whose name appears on the ballot dies after being nominated, the Electoral Officer shall post notice of the death at every Polling Station.
- 12.19 A nominee who is employed by the First Nation or a First Nation Business Entity in a management position, or whose duties include decisions on or administration of hiring, contracts, housing, membership, program benefits, or finances, shall take leave from those duties from the date of nomination until Election Day. Any person elected who is employed by the First Nation or a First Nation Business Entity shall resign from that employment before taking the Oath of Office.

13 Acclamation

- 13.1 When, at the close of nominations, the number of Candidates for a Seat is the same as the number to be elected, the Electoral Officer shall declare that Candidate elected by acclamation and shall post a notice of the acclamation.
- 13.2 No vote is required for a Seat filled by acclamation. A person elected by acclamation takes office on taking the Oath of Office under section 6, which may not occur before the day after Election Day.

Part 5

Campaigns and Voting

14 Campaign Rules

- 14.1 No person shall engage in a Corrupt Election Practice.
- 14.2 From the date of the Notice of Nomination until Election Day, the First Nation and any First Nation Business Entity shall not:
 - (a) announce or distribute any per capita distribution, one-time payment, or program benefit that was not approved in the budget or by Resolution before the Notice of Nomination was posted;
 - (b) hire or permanently appoint any senior employee, except on an acting basis; or
 - (c) award any contract over fifty thousand dollars (\$50,000.00), except where required to respond to an emergency threatening health, safety, or property.
- 14.3 Official communications of the First Nation and of any First Nation Business Entity shall not promote or oppose any Candidate.
- 14.4 All Candidates shall have equal access, on the same terms, to community facilities of the First Nation for campaign events.
- 14.5 All campaign material shall identify the Candidate responsible for it.
- 14.6 No Candidate shall accept a campaign contribution from a corporation, a First Nation Business Entity, a government, or any person who holds, or is bidding on, a contract with the First Nation or a First Nation Business Entity.
- 14.7 Within thirty (30) days after Election Day, each Candidate shall file with the Electoral Officer a statement listing every contribution over two hundred and fifty dollars (\$250.00), with the name of the contributor and the amount, and the total campaign expenses. The Electoral Officer shall publish the statements.
- 14.8 The Electoral Officer shall arrange at least two (2) all-candidates forums, one on a Reserve and one that Electors can attend online, and shall make recordings available to Electors.
- 14.9 A breach of this section is a ground of appeal under section 17.2 and, for a person elected, a ground for removal under section 20.1.

15 Conduct of Voting

- 15.1 At least thirty-five (35) days before Election Day, the Electoral Officer shall post a Notice of Election at the band office of the First Nation, on the website and any social media page of the First Nation, and at other locations the Electoral Officer designates, and shall mail or email the notice to every Non-resident Elector whose address is known.
- 15.2 The Notice of Election shall set out Election Day, the Candidates for each Seat, the location and hours of each Polling Station and any advance poll, how to vote by mail, and where the List of Electors and these Regulations can be obtained. The Electoral Officer shall include with it the statements filed under section 12.11.
- 15.3 At least thirty (30) days before Election Day, the Electoral Officer shall mail a mail-in ballot package to every Elector who has requested one or is registered as a permanent mail-in voter. For requests received later, the package shall be mailed within two (2) business days of the request.

- 15.4 The Electoral Officer shall make all preparations necessary for the proper conduct of the vote, including Polling Stations, voting compartments that protect voter privacy, ballots, ballot boxes that can be sealed, written voting instructions, and Polling Clerks and interpreters at each Polling Station.
- 15.5 The ballot shall contain a separate section for each Seat. Candidates' names shall appear in the manner requested on the nomination form, in alphabetical order by surname and then by given name. Each section shall state that the Elector may vote for one (1) Candidate for that Seat.
- 15.6 Polling Stations shall be located at least on Gregoire Lake 176A and in each city or urban service area in which at least one hundred (100) Electors reside, and at any other location the Electoral Officer considers necessary.
- 15.7 Polling Stations shall be open from 12:00 p.m. to 10:00 p.m. on Election Day. The Electoral Officer shall also hold at least one (1) advance polling day at each Polling Station no less than seven (7) days before Election Day. Any Elector who is in line to vote at the close of a Polling Station is entitled to vote, and the Electoral Officer's decision on who is in line is final.
- 15.8 The Electoral Officer may offer internet or telephone voting as an additional method if Council approves the provider and the cost by Resolution at least ninety (90) days before Election Day and the Electoral Officer certifies in writing that the system protects the secrecy of the ballot, allows only one vote per Elector, and can be audited.
- 15.9 Voting shall be by secret ballot. No person shall be required to disclose whether they voted or for whom.
- 15.10 Each Candidate may appoint one (1) Scrutineer for each Polling Station and for the counting of mail-in ballots, by written notice to the Electoral Officer at least two (2) days before Election Day. Scrutineers are not paid by the First Nation. The Electoral Officer may designate where Scrutineers may observe, and no Scrutineer may observe from a location that would allow them to see how an Elector marks a ballot. The absence of a Scrutineer does not invalidate any act.
- 15.11 An Elector who is unable to mark a ballot in the usual manner may be assisted by the Electoral Officer, a Polling Clerk, or a person of the Elector's choice who is not a Candidate or Scrutineer. The Electoral Officer shall record each instance of assistance in the prescribed form.
- 15.12 If an Elector does not understand English, the Electoral Officer may allow or appoint an interpreter, who may be a Band Member but shall not be a Candidate, a Scrutineer, or Immediate Family of a Candidate, and who shall make a statement in the prescribed form before acting.
- 15.13 When the Electoral Officer or a Polling Clerk issues a ballot, it shall be folded and initialled on the back by the Electoral Officer or Polling Clerk who issued it, so that the initials are visible without opening the ballot. A Polling Clerk shall mark the List of Electors next to the name of each Elector who receives a ballot. An Elector may vote only once in an Election.
- 15.14 After marking the ballot, the Elector shall fold it to conceal the marks and expose the initials and return it to the Electoral Officer or Polling Clerk, who shall verify the initials without unfolding the ballot and deposit it in the ballot box. An Elector who takes a ballot out of the Polling Station forfeits the right to vote in that Election.
- 15.15 An Elector who declines to vote may return the ballot, which shall be deposited in the ballot box as declined. An Elector who spoils a ballot may return it and receive another, and the Electoral Officer shall mark the returned ballot "spoiled", initial it, and place it in the ballot box.

- 15.16 The Electoral Officer or a Polling Clerk may refuse to allow a person to vote if the person's name is not on the List of Electors and the person has not made a declaration under section 10.8, if the person appears to be intoxicated, or if the person has already been given a ballot.
- 15.17 Except for Election officials, Scrutineers, and Electors engaged in voting, no person shall be present in a Polling Station during voting hours. Candidates may attend only to vote. No Candidate or person acting for a Candidate shall remain within one hundred (100) metres of a Polling Station, and no campaign material shall be displayed within that distance. The Electoral Officer or a Polling Clerk may remove any person who attempts to influence Electors or disrupts the vote.
- 15.18 Each mail-in ballot package shall contain the Notice of Election, a ballot initialled by the Electoral Officer, clear voting instructions, a voter declaration form, a ballot envelope, and a prepaid return envelope. The Elector shall mark the ballot, seal it in the ballot envelope, complete and sign the declaration before a witness over eighteen (18) years of age, and return both in the return envelope.
- 15.19 Mail-in ballots must be received by the Electoral Officer by mail, courier, or hand delivery, at the address of the Electoral Officer or at any Polling Station, before the close of the Polling Stations on Election Day. Ballots received later shall not be counted.
- 15.20 Immediately after the close of the Polling Stations, the Electoral Officer or a Polling Clerk shall, in the presence of at least one other Elector and any Candidates or Scrutineers who wish to attend, open each return envelope and, without unfolding the ballot, reject it if the declaration is missing, unsigned, or unwitnessed, if the name is not on the List of Electors, or if the List of Electors shows the Elector has already voted. Otherwise the Electoral Officer shall mark the List of Electors and deposit the ballot in the ballot box.

16 Counting, Results, Recounts, and Ties

- 16.1 Immediately after the close of the Polling Stations, the Electoral Officer or a Polling Clerk shall, in the presence of at least one other Elector and any Candidates or Scrutineers who wish to attend, open each ballot box and count and record the votes cast for each Candidate for each Seat.
- 16.2 A ballot, or the section of a ballot for a Seat, is void and shall not be counted for that Seat if it does not bear the initials of the Electoral Officer or a Polling Clerk; if more Candidates are marked for that Seat than the Elector is entitled to vote for; if anything is written on it by which the Elector can be identified; if it is torn or defaced so that the Elector can be identified; or if no vote is marked for that Seat.
- 16.3 Where a mark on a ballot clearly shows for whom the Elector intended to vote, the Electoral Officer may count the vote even if it is not marked with an "X".
- 16.4 The Electoral Officer shall endorse "rejected" on the back of each rejected ballot, endorse "rejection objected to" where an objection is made, and initial each endorsement.
- 16.5 The Electoral Officer or Polling Clerk shall complete and sign a Ballot Count Form for each Polling Station and for the mail-in ballots, setting out the location, the date, the number of ballots issued, the number of Electors who voted, the votes for each Candidate for each Seat, the number of rejected, spoiled, declined, and unused ballots, and the number of ballots not accounted for.
- 16.6 After the count, the Electoral Officer shall seal the valid ballots, the ballots objected to with the notes of objection, the rejected ballots, the spoiled and declined ballots, and the unused ballots in separate packets, each marked with a description of its contents, the date, and the name of the Electoral Officer. The Electoral Officer shall retain custody of the sealed packets and shall destroy them six (6) months after the appeal period ends, unless a court or the Tribunal orders otherwise.

- 16.7 Within two (2) hours after completing the count, the Electoral Officer shall declare elected the Candidate for each Seat who received the greatest number of votes for that Seat. Within twenty-four (24) hours after the close of the Polling Stations, the Electoral Officer shall post notice of the elected Candidates at the band office, on the website of the First Nation, and at other locations the Electoral Officer designates.
- 16.8 Within forty-eight (48) hours after the declaration, the Electoral Officer shall publish the full results for each Seat, by Polling Station and for mail-in ballots, and the voter turnout. Within sixty (60) days after Election Day, the Electoral Officer shall publish a written report on the conduct of the Election.
- 16.9 Within two (2) business days after the declaration, a Candidate may request a recount in writing if ten (10) or fewer votes, or two percent (2%) or less of the votes cast for that Seat, whichever is greater, separate that Candidate from an elected Candidate. The Electoral Officer shall notify the affected Candidates, conduct the recount in the same manner as the count, declare the outcome, correct the ballot account if necessary, and reseal the ballots.
- 16.10 In the event of a tie for any Seat, the Electoral Officer shall conduct a recount under section 16.9. If the recount does not break the tie and no tied Candidate withdraws, the Electoral Officer shall call a Run-off Election for that Seat, to be held within twenty-eight (28) days, in which the only Candidates are those who received the highest equal number of votes. Notice of the Run-off Election shall be posted at least twenty-seven (27) days before it is held. The List of Electors from the Election shall be used, and mail-in ballots shall be sent to every Elector who received one in the Election.
- 16.11 In the event of a tie in a Run-off Election, the Electoral Officer shall, in the presence of the tied Candidates or their Scrutineers, place the name of each tied Candidate on a paper in a box and, without looking, draw one paper. The Candidate whose name is drawn is elected.
- 16.12 A Run-off Election may be delayed where an appeal may affect the result that gave rise to the tie. In that case, notice of the Run-off Election shall be posted within five (5) days after the Tribunal's decision.

Part 6

Election Appeals

17 Appeals

- 17.1 Within ten (10) days after the declaration of results of an Election, or after the declaration of an acclamation, any Elector may appeal the result to the Tribunal.
- 17.2 The grounds of appeal are that:
- (a) an error was made in the interpretation or application of these Regulations that materially affected the conduct or outcome of the Election;
 - (b) a Candidate was ineligible for nomination, and the ineligibility materially affected the result;
 - (c) an Elector, a Candidate, a member of Council, or an employee of the First Nation or a First Nation Business Entity engaged in, promoted, aided, or knowingly benefited from a Corrupt Election Practice or a breach of section 14;
 - (d) persons who voted were not eligible to vote to an extent that materially affected the result;
 - (e) the Electoral Officer or a Polling Clerk acted improperly in a way that materially affected the conduct or outcome of the Election; or
 - (f) other circumstances, events, or actions improperly and materially affected the result.
- 17.3 The Notice of Appeal shall be in writing, signed by the Appellant, filed with the Tribunal at the address posted by the Electoral Officer, and accompanied by a filing fee of one hundred dollars (\$100.00). It shall state the result appealed from and the affected Candidates, the grounds with reference to the relevant sections, the material facts relied on, and the witnesses and documents the Appellant intends to rely on so far as then known.
- 17.4 An Appellant may rely on additional witnesses or documents with the leave of the Tribunal, which shall be granted where it is fair to do so and other parties have a reasonable opportunity to respond.
- 17.5 The Tribunal shall send the Notice of Appeal to all Candidates for the affected Seats and post it at the band office and on the website of the First Nation.
- 17.6 The Tribunal shall reject and return a Notice of Appeal that is not filed within the time in section 17.1, is not accompanied by the filing fee, or does not contain the information required by section 17.3.
- 17.7 The Electoral Officer shall deliver to the Tribunal an Election Record consisting of these Regulations, the appointment of the Electoral Officer, the List of Electors, all ballots, all statutory declarations and voter declarations, the Notice of Nomination and Notice of Election, all nomination papers and eligibility decisions, all Debt determinations, the Notice of Appeal, and any other relevant information in the possession of the Electoral Officer.
- 17.8 Within ten (10) days after receiving the Notice of Appeal, the Tribunal shall either dismiss the appeal as so lacking in merit that allowing it to proceed would be an abuse of process, or set the time, place, and date of a hearing, which shall be no more than thirty (30) days after the Notice of Appeal was filed. Notice of the hearing shall be posted at the band office and on the website of the First Nation and delivered to the Appellant and the affected Candidates.
- 17.9 The Tribunal shall establish procedures in accordance with the rules of natural justice and administrative fairness. The Appellant, the affected Candidates, and other Electors or their representatives may make oral or written submissions and are subject to questioning by the parties and the Tribunal.

- 17.10 The Tribunal may decide whether a hearing is required and where and when it is held; whether it is open to Band Members; questions of law; objections; the procedure to be followed; and the admission and weight of evidence, and is not bound by the rules of evidence. The Tribunal may require the attendance of, and the production of documents by, the Electoral Officer, any member of Council, and any employee of the First Nation or a First Nation Business Entity, and the First Nation shall ensure that its employees and officials comply.
- 17.11 The Tribunal may not order any relief that these Regulations do not permit. The *Arbitration Act* of Alberta, the *Commercial Arbitration Act* of Canada, and any similar legislation do not apply to the Tribunal.
- 17.12 Within ten (10) days after the hearing ends, the Tribunal shall decide to:
- (a) deny the appeal because the grounds were not established;
 - (b) find that a ground was established but allow the result to stand, because it did not materially affect the result; or
 - (c) allow the appeal and order a new Election for all or some Seats, or a Run-off Election.
- 17.13 The Tribunal shall give written reasons, shall immediately notify the parties in writing, and shall post the decision at the band office and on the website of the First Nation.
- 17.14 The filing fee shall be returned to the Appellant unless the appeal is dismissed as an abuse of process. If the Tribunal finds the appeal was an abuse of process, it may order the Appellant to pay all or part of the costs of the hearing or of the affected Candidates. Otherwise the Appellant, the Candidates, and any interveners are responsible for their own costs.
- 17.15 Where the Tribunal orders a new Election, it shall set the Election Day, which shall be no more than sixty (60) days after its decision, and shall direct the Electoral Officer to conduct it. Where a new Election is ordered for all Seats in a Seat Group, the persons whose terms were to end shall continue in office until the new Election Day, subject to section 23.
- 17.16 A decision of the Tribunal may be reviewed by the Federal Court by application for judicial review.

Part 7

Resignation, Residency, Removal, and Vacancies

18 Residency

- 18.1 Throughout their term of office, the Chief and every Councillor, other than the Councillor holding the Off-Reserve Members Seat, shall be Ordinarily Resident on a Reserve or within seventy-five (75) kilometres of Gregoire Lake 176A.
- 18.2 Throughout their term of office, the Councillor holding the Off-Reserve Members Seat shall be Ordinarily Resident off the Reserves.

19 Resignation

- 19.1 A member of Council may resign by delivering a signed written Notice of Resignation to the Council, with a copy to the Electoral Officer.
- 19.2 The Notice of Resignation shall state the effective date of the resignation, which shall be no more than thirty (30) days after the date the notice is delivered. A resignation cannot be withdrawn after it is delivered.

20 Grounds for Removal

- 20.1 The removal of a member of Council from office may be sought on the following grounds:
- (a) absence from three (3) consecutive duly convened meetings of Council, or from five (5) such meetings in any twelve (12) month period, without a valid reason provided in writing to Council;
 - (b) disorderly or irresponsible conduct related to alcohol or drugs at meetings of Council, community meetings, or other public functions, which interferes with the conduct of business or brings the First Nation or the Council into disrepute;
 - (c) violent or threatening behaviour toward any member of Council, employee, contractor, or Band Member;
 - (d) conviction of an indictable offence while in office;
 - (e) engaging in a Corrupt Election Practice, the evidence of which was discovered after the appeal period;
 - (f) failing to meet the residency requirement in section 18;
 - (g) misusing or misappropriating the funds of the First Nation or a First Nation Business Entity, or converting their property to personal use;
 - (h) a finding by the Integrity Commissioner of a serious breach, or repeated breaches, of the Council Governance Laws;
 - (i) failing to file a Financial Disclosure Statement or statement of interests within thirty (30) days after written notice of default from the Integrity Commissioner;
 - (j) knowingly taking part in any discussion or decision of Council on a matter in which the member has a conflict of interest;
 - (k) voting for, directing, or taking any other step to postpone, cancel, or obstruct an Election, Ratification Vote, or Removal Vote contrary to these Regulations, or to amend or repeal a protected provision of the Council Governance Laws contrary to section 24.2; or
 - (l) retaliating against any person for making a complaint, providing information, or participating in a proceeding under these Regulations or the Council Governance Laws.

21 Removal Process

- 21.1 Any Elector may start a removal proceeding by filing a petition with the Electoral Officer. The petition shall state the name of the member of Council, the grounds under section 20.1, and a summary of the evidence in support, and shall be accompanied by a signed statement of a person who is the representative of the petitioners and to whom inquiries may be directed.
- 21.2 For each petitioner, the petition shall include the printed surname and given names, the signature, the mailing address or land description where the petitioner resides, and the date of signing. Each signature shall be witnessed by an adult who signs opposite it. Signatures dated more than ninety (90) days before the petition is filed shall not be counted.
- 21.3 The petition shall be signed by at least twenty percent (20%) of the Electors on the List of Electors as updated by the Electoral Officer on the date the petition is filed.
- 21.4 No petition may be filed against a member of Council during the first six (6) months of their term, during the six (6) months before the General Election for their Seat, or within twelve (12) months after a Removal Vote on the same grounds that did not result in removal.

- 21.5 Within fourteen (14) days after filing, the Electoral Officer shall verify whether the petition meets sections 21.1 to 21.4, shall give written reasons, and shall notify the petitioners' representative and the member of Council. If the petition is verified, the Electoral Officer shall post notice of it and refer it to the Tribunal.
- 21.6 Within thirty (30) days after the referral, the Tribunal shall hold a hearing at which the member of Council may respond, be represented by counsel, and present documents and witnesses. The Tribunal shall decide, on a balance of probabilities, whether a ground for removal has been established, and shall give written reasons within fourteen (14) days after the hearing ends. If no ground is established, the proceeding ends.
- 21.7 Where the Integrity Commissioner, under the Conduct and Conflict of Interest Code, finds a serious breach or repeated breaches and recommends removal, the report shall be treated as a verified petition and referred directly to the Tribunal under section 21.6.
- 21.8 If the Tribunal finds that a ground for removal has been established, the Electoral Officer shall hold a Removal Vote within forty-five (45) days. The vote shall be by secret ballot at Polling Stations under section 15.6 and by mail-in ballot, and may include internet or telephone voting where section 15.8 is met. The ballot question shall be: "Shall [name] be removed from the office of [Seat]?" The member of Council may provide a written statement of no more than five hundred (500) words, which the Electoral Officer shall send to Electors with the notice of the vote.
- 21.9 The member of Council is removed from office if:
- (a) a majority of the votes cast are in favour of removal;
 - (b) the total number of votes cast is at least twenty-five percent (25%) of the Electors on the List of Electors; and
 - (c) the number of votes in favour of removal is greater than the number of votes the member received in the Election at which they were last elected or, if they were acclaimed, is at least twenty percent (20%) of the Electors on the List of Electors.
- 21.10 Where a member of Council is convicted of an indictable offence while in office, ceases to be an Elector, or fails to meet section 18 and does not correct the failure within sixty (60) days after written notice from the Electoral Officer, the Electoral Officer shall refer the matter to the Tribunal, which, after giving the member notice and an opportunity to be heard, shall declare the Seat vacant if the fact is established. Council has no authority to remove or suspend a member of Council by Resolution.
- 21.11 On an application by Council or by at least twenty-five (25) Electors, the Tribunal may suspend with pay a member of Council who has been charged with an indictable offence arising from the exercise of their office or involving violence, until the charge is finally disposed of, where the Tribunal is satisfied that the member's continued exercise of office poses a risk of harm to the First Nation or any person. The suspension ends if the charge is withdrawn, stayed, or results in an acquittal.
- 21.12 A person removed from office ceases immediately to hold office and to be entitled to any rights and privileges of the office.

22 By-elections

- 22.1 Where a Seat becomes vacant by death, resignation, removal, or failure to take the Oath of Office and more than six (6) months remain in the term, the Electoral Officer, and not Council, shall within twenty-one (21) days after the vacancy set a date for a By-election, which shall be no later than ninety (90) days after the vacancy.
- 22.2 Where six (6) months or less remain in the term, the Seat shall be filled at the next General Election for that Seat Group, unless the vacancy leaves fewer than five (5) persons holding office on Council, in which case a By-election shall be held under section 22.1.
- 22.3 Where two (2) or more Seats become vacant within fourteen (14) days of each other, the Electoral Officer may hold one By-election for all of them.
- 22.4 The rules and procedures for a By-election are the same as those for a General Election.

Part 8

Continuity and Caretaker Rules

23 Caretaker Periods

23.1 A Caretaker Period is:

- (a) any period after the date fixed for a General Election under section 5.1 during which that General Election has not been held and its results declared; and
- (b) any period during which fewer than five (5) persons hold office on Council.

23.2 During a Caretaker Period, Council may act only to:

- (a) carry on routine administration within the approved budget;
- (b) respond to an emergency threatening health, safety, or property;
- (c) meet legal obligations that were binding on the First Nation before the Caretaker Period began;
- (d) take any step needed to hold an Election or By-election and cooperate with the Electoral Officer; and
- (e) make any appointment, or take any other step, that these Regulations require.

23.3 During a Caretaker Period, Council shall not:

- (a) enter into any contract or commitment over fifty thousand dollars (\$50,000.00) that is not in the approved budget;
- (b) borrow money, give a guarantee, or dispose of or encumber any asset or interest of the First Nation or a First Nation Business Entity;
- (c) hire, dismiss, or change the terms of employment of any senior employee, except on an acting basis;
- (d) approve any payment, settlement, or benefit to a member of Council or their Immediate Family, other than regular remuneration under the approved schedule;
- (e) sign any agreement affecting Reserve lands, Aboriginal or Treaty rights, or the ownership of a First Nation Business Entity;
- (f) change the remuneration of members of Council; or
- (g) enact, amend, or repeal any by-law, code, or policy, except one approved by the Electors at a Special Meeting of Electors or in a Ratification Vote.

23.4 During a period described in section 23.1(b), the persons holding office may meet and act by a majority of those holding office, but only for the purposes set out in section 23.2.

23.5 An act contrary to section 23.3 is not authorized by the First Nation, and voting for or directing such an act is a ground for removal under section 20.1.

Part 9

Conduct and Disclosure

24 Code of Conduct and Integrity Commissioner

- 24.1 Every member of Council shall comply with the Council Governance Laws.
- 24.2 Council shall not amend or repeal any provision of the Council Governance Laws that either of them identifies as a protected provision, except with the approval of the Electors in a Ratification Vote held in the same manner as a vote under section 25.
- 24.3 Council shall appoint an Integrity Commissioner in accordance with the Conduct and Conflict of Interest Code. If the office is vacant for more than ninety (90) days, the Tribunal shall appoint a qualified person.
- 24.4 Each member of Council shall file a Financial Disclosure Statement in the form prescribed in Schedule B with the Integrity Commissioner within thirty (30) days after taking office and by June 30 of each year after that, and shall file an updated statement within thirty (30) days after any material change. The Integrity Commissioner shall publish a summary of each statement that does not disclose Confidential Information.

Part 10

Amendments and Votes of Electors

25 Amendments

- 25.1 These Regulations may be amended only in accordance with this section.
- 25.2 A proposed amendment may be initiated by:
- (a) a Resolution of Council approving the text of the proposed amendment; or
 - (b) a petition to the Electoral Officer setting out the text of the proposed amendment, signed by at least ten percent (10%) of the Electors on the List of Electors, in the manner set out in section 21.2.
- 25.3 Before giving notice of the Ratification Vote, the Electoral Officer shall obtain a written opinion from an independent lawyer on whether the proposed amendment conflicts with any other provision of these Regulations or with applicable law, and shall publish the opinion with the notice. The opinion is advisory only.
- 25.4 At least forty-five (45) days before the Ratification Vote, the Electoral Officer shall post notice of the vote at the band office, on the website and any social media page of the First Nation, and at other locations the Electoral Officer designates, and shall mail or email the notice to every Elector whose address is known. The notice shall include the full text of the proposed amendment, a plain-language summary, the date and locations of the vote, and how to vote by mail.
- 25.5 At least fourteen (14) days before the Ratification Vote, the Electoral Officer shall hold at least one (1) information meeting on a Reserve and one (1) information meeting that Electors can attend online.
- 25.6 The Ratification Vote shall be held by secret ballot at the Polling Stations under section 15.6 and by mail-in ballot, and may include internet or telephone voting where section 15.8 is met.
- 25.7 An amendment is approved if a majority of the votes cast are in favour and the total number of votes cast is at least twenty-five percent (25%) of the Electors on the List of Electors.
- 25.8 An approved amendment comes into force on the date the Electoral Officer declares the result, or on any later date stated in the amendment. The Electoral Officer shall certify the result in writing, publish the amended Regulations on the website of the First Nation, and send a certified copy to Indigenous Services Canada for its records.
- 25.9 Council has no authority to amend, suspend, or override these Regulations by Resolution, by-law, policy, or procedure.

26 Administrative Procedures and Severance

- 26.1 Council may, by Resolution, approve administrative procedures to implement these Regulations that are consistent with them. Procedures issued by the Electoral Officer under section 8.7 prevail over any administrative procedure of Council on the conduct of an Election or vote.
- 26.2 If a section, subsection, or part of these Regulations is found to be inoperable by a court, it shall be severed, and the remaining provisions remain in full force and effect.

Part 11

Transition, Repeal, and Coming into Force

27 Coming into Force

- 27.1 These Regulations come into force on the date of the Special Meeting of Electors at which they are approved under section 20 of the 2014 Regulations.
- 27.2 Following the Special Meeting, the chair of the meeting, the Chief, or a Councillor shall swear the affidavit required by section 20.8 of the 2014 Regulations in the form set out at the end of these Regulations, and a certified copy of these Regulations, the Resolution, the notice, and the affidavit shall be published on the website of the First Nation and sent to Indigenous Services Canada for its records.

28 Transitional Provisions

- 28.1 The Chief and each Councillor holding office on the date these Regulations come into force continue in office, subject to this section.
- 28.2 The Chief continues in the Seat of Chief in Seat Group A.
- 28.3 Within fourteen (14) days after these Regulations come into force, each Councillor holding office shall select one Portfolio Seat by written notice to the Electoral Officer, as follows:
- (a) a Councillor whose term, under the 2014 Regulations, would end at the same General Election as the Chief's shall select a Portfolio Seat in Seat Group A;
 - (b) any other Councillor shall select a Portfolio Seat in Seat Group B; and
 - (c) only a Councillor who is Ordinarily Resident off the Reserves may select the Off-Reserve Members Seat.
- 28.4 If two Councillors select the same Portfolio Seat, or a Councillor makes no selection, the Electoral Officer shall assign the Portfolio Seat by drawing lots in public.
- 28.5 The Electoral Officer shall hold a Transitional Election for every Seat not held under sections 28.2 to 28.4, with an Election Day no later than one hundred and twenty (120) days after these Regulations come into force. The timelines in sections 12.1, 12.13, 15.1, and 15.3 may be shortened by the Electoral Officer for the Transitional Election by no more than one third.
- 28.6 If, on the date these Regulations come into force, the term of the Chief or of any Councillor has expired under the 2014 Regulations, or a General Election under the 2014 Regulations is overdue, the Electoral Officer shall instead hold a General Election for all Seats in both Seat Groups with an Election Day no later than one hundred and twenty (120) days after these Regulations come into force, and sections 28.2 to 28.5 do not apply to any person whose term has expired.
- 28.7 If a Notice of Nomination for an Election under the 2014 Regulations was posted before these Regulations come into force, that Election shall be completed under the 2014 Regulations, and sections 28.1 to 28.5 apply to the persons elected as soon as they take office.
- 28.8 Persons elected to Seats in Seat Group A under sections 28.5 or 28.6 hold office until the General Election for Seat Group A in 2030. Persons elected to Seats in Seat Group B under sections 28.5 or 28.6 hold office until the General Election for Seat Group B in 2028. Where a Transitional Election or a General Election under section 28.6 would be held after January 1, 2028, the Seats in Seat Group B shall instead be filled at the 2028 General Election for Seat Group B.

- 28.9 Within thirty (30) days after these Regulations come into force, Council shall appoint the standing Electoral Officer under section 8 and the Tribunal roster under section 9. Until those appointments are made:
- (a) the person who acted as electoral officer for the most recent election under the 2014 Regulations, if qualified under section 8.3 and willing, shall act as the Electoral Officer; and
 - (b) if no such person is available within those thirty (30) days, any Elector may apply to the Federal Court for directions under section 8.4, and the First Nation shall pay the reasonable costs.
- 28.10 Within sixty (60) days after these Regulations come into force, Council shall appoint the first Integrity Commissioner, failing which the Tribunal shall appoint one. Until the Conduct and Conflict of Interest Code is in force, the Integrity Commissioner shall receive the statements required by section 24.4 and shall report on them to the Electors.
- 28.11 Any appeal, petition, or other proceeding commenced under the 2014 Regulations before these Regulations come into force shall be completed under the 2014 Regulations.

29 Repeal

- 29.1 The 2014 Regulations are repealed and replaced by these Regulations, subject to section 28, and these Regulations replace all prior election codes, regulations, and procedures of the First Nation.

Schedule A

Duties of the Electoral Officer

A1 General Duties

- A1.1 The Electoral Officer shall conduct every Election, Ratification Vote, and Removal Vote under these Regulations impartially, independently, and in accordance with these Regulations and the principles of natural justice.
- A1.2 The Electoral Officer shall:
- (a) prepare and publish a timeline for each Election and vote, showing every date and deadline required by these Regulations;
 - (b) obtain, verify, update, and protect the List of Electors, and use it only as permitted by section 10.7;
 - (c) prepare, post, publish, mail, and email every notice required by these Regulations;
 - (d) receive and decide mail-in ballot requests and maintain the register of permanent mail-in voters;
 - (e) conduct the nomination meeting, receive nominations, decide completeness and eligibility, and give written reasons;
 - (f) decide objections to the List of Electors and Debt disputes as required by sections 10.6 and 12.7;
 - (g) arrange Polling Stations, advance polls, voting compartments, ballots, sealed ballot boxes, voting instructions, Polling Clerks, and interpreters;
 - (h) arrange the all-candidates forums under section 14.8;
 - (i) supervise voting, maintain order at Polling Stations, and record every instance of assistance to an Elector and every use of an interpreter;
 - (j) receive, verify, and count mail-in ballots, and count all ballots in the presence of Scrutineers and Electors;
 - (k) declare and publish results, conduct recounts, and conduct Run-off Elections;
 - (l) administer or arrange for the administration of the Oath of Office, and publish the signed Oath within seven (7) days;
 - (m) receive and publish Candidate contribution statements under section 14.7;
 - (n) receive, verify, and process removal petitions and amendment petitions;
 - (o) prepare the Election Record for the Tribunal and comply with its directions;
 - (p) retain and destroy ballots as required by section 16.6; and
 - (q) publish a written report on each Election and vote within sixty (60) days, including turnout, costs, complaints received, and recommendations.

A2 Records and Privacy

- A2.1 The Electoral Officer shall keep all personal information of Electors confidential, shall use it only for the purposes of these Regulations, and shall return or securely destroy it when no longer required, except as a court or the Tribunal directs.

A3 Reporting of Interference

- A3.1 The Electoral Officer shall report in writing to the Tribunal, and publish a summary of, any attempt by a member of Council, an employee, or any other person to direct, obstruct, or interfere with the Electoral Officer's duties.

Schedule B

Prescribed Forms

- B1.1 The Electoral Officer shall prepare and publish the following forms, each of which shall contain at least the information listed:
- (a) **Form 1, Nomination Form:** the Seat, the nominee's full name and the name to appear on the ballot, contact information, the signatures and printed names of at least ten (10) Electors, and the nominee's witnessed acceptance;
 - (b) **Form 2, Debt Clearance Certificate:** the Elector's name, a statement whether any Debt as defined in section 12.4 is owed, and if so the amount, the creditor, and the written agreement, judgment, or Resolution on which it is based, signed and dated by the Finance Officer;
 - (c) **Form 3, Statutory Declarations:** the declarations required by sections 10.8, 12.6, and 12.10(f);
 - (d) **Form 4, Financial Disclosure Statement:** the Elector's employment and sources of income, other than amounts; every business, corporation, partnership, or joint venture in which the Elector or their Spouse holds an ownership interest of ten percent (10%) or more or a directorship; every contract, loan, or business relationship with the First Nation or a First Nation Business Entity in the past three (3) years; and every member of the Elector's Immediate Family employed by or contracted to the First Nation or a First Nation Business Entity;
 - (e) **Form 5, Acknowledgement of the Council Governance Laws;**
 - (f) **Form 6, Voter Declaration for Mail-in Ballots:** the Elector's name, Band membership number, date of birth, signature, and the name, address, telephone number, and signature of the witness;
 - (g) **Form 7, Report of Assistance and Interpreter Statement;**
 - (h) **Form 8, Ballot Count Form;**
 - (i) **Form 9, Notice of Appeal;**
 - (j) **Form 10, Removal Petition and Amendment Petition,** in the form required by sections 21.1, 21.2, and 25.2(b); and
 - (k) **Form 11, Candidate Contribution and Expense Statement.**

Schedule C

Oath of Office

C1.1 Each person elected shall take the following oath or solemn affirmation:

I, _____, having been elected to the office of _____ of the Fort McMurray No. 468 First Nation, do solemnly [swear / affirm] that I will faithfully, honestly, and impartially carry out the duties of that office for the benefit of all Band Members, on and off the Reserves.

I will uphold the Customary Election Regulations, the Council Procedure By-law, the Conduct and Conflict of Interest Code, and the other laws of the First Nation. I will make decisions only at duly convened meetings of Council, I will disclose every conflict of interest and remove myself from any matter in which I have one, and I will not use my office, or the property, funds, or employees of the First Nation, for the benefit of myself, my family, or my friends.

I will make the information that belongs to the Band Members available to them as the law of the First Nation requires, and I will not direct, pressure, or retaliate against any employee, Band Member, or official who is carrying out their duties.

I understand that the authority of this office is held in trust for the Band Members of the Fort McMurray No. 468 First Nation.

Signed and sworn or affirmed

Signature of member of Council

Printed name and Seat

Date and place

Signature of Electoral Officer,
Commissioner for Oaths, or Justice of the
Peace

Printed name and title

Witness (Elder or Band Member)

Schedule D

Portfolio Mandates

- D1.1 Each mandate describes what a Councillor oversees and reports on. Under section 4.3, no mandate gives a Councillor authority to direct employees, approve spending, or bind the First Nation.
- D1.2 **Chief:** chairs meetings of Council; represents the First Nation in relations with other governments, Treaty organizations, and the tribal council of which the First Nation is a member, as directed by Resolution; oversees culture, language, and relations with Elders; and reports on intergovernmental matters.
- D1.3 **Finance and Audit:** oversees the budget process, financial reporting, audit, and compliance with the Financial Administration Code; serves as vice-chair of the Finance and Audit Committee under the Financial Administration Code; and reports quarterly on the financial position of the First Nation. The Councillor holding this Seat shall not also serve as a director of a First Nation Business Entity.
- D1.4 **Economic Development, Lands and Resources:** oversees First Nation Business Entities, own-source revenue, impact benefit and equity agreements, reserve lands and additions to reserve, and consultation on resource development; and reports on the performance of business investments.
- D1.5 **Housing and Infrastructure:** oversees the Housing Code, the housing development plan, and capital projects; and reports on housing supply, the housing list, and capital project progress. The Councillor holding this Seat has no vote on individual housing allocations.
- D1.6 **Public Works and Emergency Services:** oversees roads, water and wastewater, solid waste, facilities and grounds maintenance, fire protection, and emergency management planning; and reports on service levels and maintenance.
- D1.7 **Education, Training and Employment:** oversees education, post-secondary support, skills training, and employment programs; and reports on participation and outcomes.
- D1.8 **Health, Wellness and Social Development:** oversees health, community wellness, food security, social development, and youth and Elders programs; and reports on program delivery.
- D1.9 **Off-Reserve Members:** oversees communication with Members who live off the Reserves, their access to programs and services of the First Nation, the services of any urban office of the First Nation, and the participation of off-reserve Electors in meetings and votes; and reports on these matters.
- D1.10 Membership decisions under the Membership Code, and the administration of the First Nation, are not assigned to any Portfolio. Administration is the responsibility of the Band Manager, who reports to Council as a whole.

AFFIDAVIT ON RATIFICATION

(2014 Regulations, section 20.8)

I, _____, of _____, in the Province of Alberta, being the [chair of the Special Meeting / Chief / Councillor] of the Fort McMurray No. 468 First Nation, MAKE OATH AND SAY THAT:

- 1.1 Proper notice of the Special Meeting of Electors held on _____, 20____ was given as required by section 20.3 of the 2014 Regulations, being posted on _____, 20____ at the band office at Gregoire Lake No. 176A Reserve and _____, and mailed to Non-resident Electors who had provided a mailing address, with a copy of the proposed amendments attached.
- 1.2 The Special Meeting was duly constituted as required by section 20.7 of the 2014 Regulations. The total number of Electors who voted in the previous Election was _____, and _____ Electors were present, being at least fifty percent (50%) of that number.
- 1.3 The total number of votes cast by secret ballot was _____, of which _____ were in favour of the amendments and _____ were against, and _____ ballots were spoiled or rejected.
- 1.4 To the best of my knowledge, the vote was properly conducted.

SWORN BEFORE ME

Signature of deponent

Commissioner for Oaths in and for the
Province of Alberta

Printed name and expiry of commission

Place and date sworn

Explanatory Notes

1. Purpose

These Regulations amend and restate the Customary Election Regulations effective May 31, 2014. These notes are not part of the Regulations.

2. Adoption

The Regulations are adopted under section 20 of the 2014 Regulations:

- Council approves the draft amendments by Resolution (section 20.2).
- Notice of a Special Meeting of Electors is posted at least fourteen (14) days before the meeting and mailed to Non-resident Electors who have provided an address, with the proposed amendments attached (sections 20.3 to 20.5).
- At least fifty percent (50%) of the total number of Electors who voted in the previous Election must be present (section 20.7).
- The amendments are adopted on approval by a majority of the Electors present and voting by secret ballot, effective on the date of the meeting (section 20.6).
- An affidavit is sworn after the meeting (section 20.8). The form is set out before these notes.

3. Key provisions

- Council of one Chief and seven Councillors, each Councillor elected to a portfolio, including an Off-Reserve Members Seat held by a Councillor who lives off the Reserves. Every Elector votes for every Seat (sections 4.1, 4.2, 4.7, 18.2, Schedule D).
- No portfolio carries authority to direct employees, approve spending, or bind the First Nation (section 4.3).
- Two Seat Groups, elected two years apart (sections 4.4, 5.1).
- General Election dates fixed by the Regulations. Council has no authority to postpone or cancel an Election (sections 5.1 to 5.4).
- Caretaker rules after a missed election date, or when fewer than five members hold office (section 23).
- Standing Electoral Officer and Election Appeal Tribunal roster, not subject to direction by Council (sections 8, 9).
- Definition of Debt, Debt Clearance Certificates, and a dispute process before nominations close (sections 12.4 to 12.7).
- A person serving a sentence on the date of nomination, or found to have engaged in a Corrupt Election Practice within the previous five years, may not be nominated (section 12.3).
- Records, keys, devices, passwords, and payment cards are returned within seven days after a person leaves office (section 6.5).
- Removal on a petition of twenty percent (20%) of Electors, a Tribunal hearing, and a Removal Vote (sections 20, 21).
- Amendments initiated by Council or by a petition of ten percent (10%) of Electors, and decided by Ratification Vote (section 25).
- Transitional provisions for Councillors in office and the first Election under these Regulations (section 28).

4. Changes from the 2014 Regulations

2014 section	2014 provision	2026 provision
4.1	One Chief and two Councillors	One Chief and seven Councillors elected to portfolios, including an Off-Reserve Members Seat (4.1, 4.2, 18.2)
4.2, 4.3	Four-year terms. Office held until the next General Election result is declared	Staggered Seat Groups. Terms end at the fixed General Election. Caretaker rules apply after that date (4.4, 4.5, 5.4, 23)
5.1, 6.1	General Elections in the second full week of June, on a date set by Resolution	Second Saturday of June, fixed by the Regulations. No Resolution required. Council may not postpone (5.1 to 5.3)
6.1, 6.4, 6.5	Electoral Officer appointed and paid by Council for each Election. Duties may be added by Resolution	Standing Electoral Officer for four years, not subject to direction or removal by Council (8)
6.6, 6.8	Electoral Officer appoints the Election Appeal Tribunal	Standing Tribunal roster appointed by Council and confirmed by Electors (9)
7.3	Candidates receive Electors' names and on or off Reserve status	Same list. Electoral Officer sends Candidate statements to all Electors (12.11, 15.2)
7.6, 10.40	Mail-in ballot on request made before nomination day	Request up to 21 days before Election Day, or permanent mail-in registration (11)
8.3(b)	Ineligible if convicted within six years or currently charged	Ineligible if convicted within six years or serving a sentence on the date of nomination. A pending charge is not a bar (12.3(b), (c))
8.3(c), 8.12(c)	Ineligible if owing "other debts." Letter from the band administrator or chief executive officer	Defined Debt. Certificate within seven days. Dispute process before nominations close (12.3(d), 12.4 to 12.7)
8.3(e)	Ineligible if a plaintiff in a civil action against the First Nation	Removed
8.4	Refers to sections 19.5 and 19.6	Corrected (12.8)
2.7	Corrupt Election Practices by former employees and former Council members	Applies to all persons, including Council and current employees. Use of First Nation resources added (2.1(j), 14)
10.9	Polling Stations on Reserve 176A and in Edmonton	Reserve 176A and each city or urban service area with at least 100 Electors. Advance poll added (15.6, 15.7)
10.21(a)	Interpreter may not be an Elector or Band Member	Interpreter may be a Band Member who is not a Candidate, Scrutineer, or Immediate Family of a Candidate (15.12)
10.24	Ballot bears "their initials"	Ballot initialled by the Electoral Officer or Polling Clerk (15.13)
13.1	Recount requested within six hours, where ten votes or fewer separate Candidates	Requested within two business days, where ten votes or two percent or fewer separate Candidates (16.9)
15.1, 15.4	Appeal within three business days, by an Elector who voted	Appeal within ten days, by any Elector (17.1)

2014 section	2014 provision	2026 provision
15.2	\$500 deposit	\$100 filing fee (17.3, 17.14)
15.6, 15.15	Evidence limited to the Notice of Appeal. Tribunal may compel only the Electoral Officer	Additional evidence with leave. Tribunal may require attendance of Council members and employees (17.4, 17.10)
15.20	Refers to sections 15.18(b) and (c)	Corrected (17.14)
15.23, 15.24	Review limited to errors of law and natural justice	Judicial review by the Federal Court (17.16)
18.2, 18.3, 18.7	Petition of 51% of all Electors, verified by Council. Removal approved by 60% of the number who voted in the previous Election	Petition of 20% of Electors verified by the Electoral Officer, Tribunal hearing, Removal Vote (21)
18.8	Council may remove a member by Resolution for residency or conviction	Tribunal declares the Seat vacant after a hearing (21.10)
18.1(g)	Suspension without pay on a charge. Decision-maker not stated	Tribunal may suspend with pay in limited circumstances (21.11)
19.1	Council sets By-election dates	Electoral Officer sets By-election dates (22)
20	Amendments drafted by Council. Special Meeting quorum of 50% of the number who voted in the previous Election	Initiated by Council or a 10% petition. Ratification Vote with mail-in voting and 25% participation (25)
None	No oath, term limits, caretaker rules, or conduct provisions	Added (6, Schedule C, 7.3, 7.4, 23, 24)

5. Records required before adoption

- The signed 2014 Regulations and the record of the Special Meeting at which they were approved.
- The number of Electors who voted in the previous Election, for the quorum under section 20.7 of the 2014 Regulations.
- The names of the Chief and Councillors in office and the dates their terms end, for the transitional provisions in section 28.